

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(SPECIAL ORIGINAL JURISDICTION)

WRIT PETITION NO. 2896 OF 2023

IN THE MATTER OF:

An application under Article 102 of the
Constitution of the People's Republic of
Bangladesh.

-AND -

IN THE MATTER OF:

Tasmina Khatun and others

.....Petitioners

-vs-

Bangladesh, represented by The Secretary,
Financial Institutions Division, Ministry of
Finance, Bangladesh Secretariat, Ramna,
Dhaka-1000 and others

.....Respondents

Mr. Mohammad Ibrahim Khalil, Advocate

.....For the Petitioners

Mr. Hafizur Rahman Khan with

Mr. Sikder Mahmudur Razi, Advocates

.... For the Respondent No. 2

Present:

Mr. Justice Zafar Ahmed

And

Mr. Justice Md. Bashir Ullah

Judgment on: 23.07.2023

Md. Bashir Ullah, J.

On an application under Article 102 of the Constitution of the
People's Republic of Bangladesh, this Rule Nisi was issued on
12.03.2023 calling upon the respondents to show cause as to why the
impugned amendment/changes brought in schedule of the Palli Sanchay
Bank Employee Service Regulation, 2022, published, vide SRO No. 293-

Law/2022 dated 18th September 2022, so far as it relates to creating an embargo upon the petitioners to be considered for promotion to the post of Officer(General) and making it applicable upon the petitioners should not be declared to have been made without lawful authority and thus have no manner of application upon the petitioners who were appointed long prior to the amendment coming into force and as to why they should not be directed to consider the case of promotion of the petitioners to the post of officer (General) in Grade X under the provision of the Palli Sanchay Bank (Officer-Employee) Service Regulation 2016 under which they were appointed effective from the date of eligibility and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts, relevant for the disposal of the Rule, in brief, are that the petitioners were appointed in the post of cash assistant in grade XIV of the National Pay Scale 2015 under the provision of the Palli Sanchay Bank (Officer-Employee) Service Regulation 2016. The terms and conditions of the petitioners' service are governed/guided by the provisions of the Palli Sanchay Bank(Officer-Employee) Service Regulation 2016 (Regulation, 2016). Under the provision of the Regulation 2016, 50% of petitioners would be eligible for promotion to the post of Officer (General) and Officer (Cash) in the grade X of the National Pay Scale on completion of five years of service. All the petitioners with their yearly increments are now at the pay scale prescribed for grade XII of the National Pay Scale.

It is stated that the Palli Sanchay Bank(Officer-Employee) Service Regulation 2016 was amended and replaced by the Palli Sanchay Bank Employee Service Regulation 2022, and a new post was created at the serial No. 22 of the schedule, namely Junior Officer (Field) in grade XII of the National Pay Scale and the post of Officer (Cash) was abolished. Under the provisions of the Regulation 2022, now the petitioners are required to get a promotion in the newly created post of Junior Officer (Field) in grade XII and after serving in the said post for five years they will be considered for promotion to the post of Officer(General). The changes brought in the schedule are detrimental to the petitioners.

Since the petitioners were appointed under the provisions of the Regulation 2016, and their promotion would be considered by the regulation under which they were appointed and the detrimental provision as contained in the schedule of the Regulation 2022 will have no manner application upon the petitioners. Therefore, the petitioners are entitled to be considered for promotion to the post of Officer (General) in grade X of the National pay scale.

It is further stated that it has now been a settled law of the land that the appointing authority enjoys the power and authority to frame new rules to regulate the service of its employees, but that in no way can it take away the accrued/vested rights of its employees. Thus, the provision of the Regulations 2022 would not operate as a bar for the petitioners to

be considered for promotion to the post of Officer (General) in grade X as they were appointed under provisions of Regulation 2016.

The petitioners under compulsion, served a legal notice through their learned Advocate on 15.02.2023, though the notice was duly received by the respondents but there was no response.

Being aggrieved, the petitioners filed this instant writ petition and obtained the Rule Nisi.

The respondent No. 2 contested the Rule by filing an affidavit-in-opposition.

Mr. Mohammad Ibrahim Khalil, learned Advocate appearing on behalf of the petitioners submits that the Palli Sanchay Bank was established under Act 7 of 2014 and the petitioners were appointed in the post of cash assistant in grade XIV of the National Pay Scale 2015 under the provision of the Palli Sanchay Bank (Officer-Employee) Service Regulation 2016. The Regulation 2016 was promulgated vide S.R.O. No. 68-law/2016 on 28th May 2016. The terms and conditions of the service of the petitioners are governed/ guided by the provisions of the Regulation 2016. Under the provision of Regulation 2016, 50% of petitioners would be eligible for promotion to the post of Officer (General) and Officer (Cash) in the grade X of the National Pay Scale on completion of five years of service.

He next submits that since the petitioners were appointed under the provisions of the Regulation 2016, and their promotion would be considered by the regulation under which they were appointed and the detrimental provision as contained in the schedule of the Regulation 2022 will have no manner application upon the petitioners. Therefore, the petitioners are entitled to be considered for promotion to the post of Officer (General) in grade X of the National pay scale.

He further submits that according to the provisions of the Rules, 2016 the petitioners would be eligible for consideration for promotion to the post of Officer (General) in the grade X of the National pay scale. But if the newly framed Rules are given effect upon the petitioners, then the petitioners would be required to get promotion in the newly created post of Junior Officer (field) in grade XII of the National Pay Scale and serve for another five years to be considered for promotion in the post of Officer (General) in grade X of the National Pay Scale. Under the provision of the Rules, 2016 the petitioners were required to serve five years to be considered for promotion to the post of Officer (General), but under the provision of the newly framed Rule, the petitioners are now required to serve ten years to be considered for promotion to the post of Officer (General) and thus, the newly framed Rules appear to be disadvantageous to the petitioners and hence, will have no manner of application upon the petitioners.

He next submits that bringing changes in the criteria for promotion in the Palli Sanchay Bank Service Rules 2022 which was notified in the officer gazette notification vide SRO No. 03-Lw/2021 dated 19.01.2021 and making it applicable to the petitioners who were appointed under the Palli Sanchay Bank Service Rules 2016 was not only unreasonable but also illegal and against all norms of justice. In support of his contention, learned Advocate refers to the decisions passed in ***Bakhrabad Gas Systems Limited Vs. Al Musud-ar-Noor and others***, reported in 66 DLR(AD) 187 and ***Md. Rezaul Amin and others***, in writ petition No.5203 of 2021 (Unreported Judgment dated 09.03.2023).

Mr. Sikder Mahmudur Razi, learned Advocate appearing on behalf of the Respondent No. 2 submits that the petitioners were appointed in the post of Cash Assistant on 04.04.2019 and creation of the Junior Officer (Field) post and abolition of the Officer (Cash) post by the 2022 Regulations were made following approval of the amendment to the Organogram of Palli Sanchay Bank vide office order dated 18.04.2018, before the petitioners' joining. He further submits that since the amended Organogram was already in place before the petitioners' appointment, the petitioners cannot claim that their vested rights have been taken away. He next submits that in light of the original Service Regulations 2016, an employee used to get a promotion from Grade 14 to Grade 10. As a result, the concerned authority has inserted a new post as Junior Officer (Field) and Data Entry Operator under Grade 12. The changes have been made

before the appointment of the petitioners and as such, the 2022 Regulations is not detrimental to the petitioners. He lastly submits that the new Organogram had been approved on 18.04.2018. On the other hand, the petitioners were appointed on 04.04.2019. Therefore, no vested right of the petitioners has been infringed under Regulation 2022 and as such, the Rule is liable to be discharged.

Heard the learned Advocate for the petitioners and learned Advocate for the respondent No. 2 and perused the writ petition, affidavits -in-opposition, application for direction, application for stay and the annexures.

It is now a settled proposition that the terms and conditions of the service of an employee will be guided by the service rules under which he was appointed. In the instant case, petitioners were appointed on 04.04.2019 to the post of Cash Assistant under the Palli Sanchay Bank (Officer-Employee) Service Regulation 2016. The Palli Sanchay Bank (Officer-Employee) Service Regulation 2022 was published vide SRO No. 293-Law/2022 dated 18th September 2022 after their appointment. Amendment of the existing service rules of any department is a sweet will of the concerned authority but the same cannot be amended to the detriment or disadvantage of an existing employee although the authority is at liberty to amend/enact new service rules to the benefit or advantage of the existing employees. Promotion to a higher post is not a fundamental right or a legal right of an employee, but the right to be considered for

promotion to the higher post in accordance with law is a fundamental right. Therefore, by amending the service rules by which an employee was appointed/ promoted or by enacting new service rules right to be considered for promotion to a higher post cannot be taken away. Therefore, the petitioners are legally entitled to be considered for promotion to the post of Officer (General) & Officer (Cash) as the "Cash Assistant" is the feeder post of Officer (General) & Officer (Cash) under Palli Sanchay Bank (Officer-Employee) Service Regulation 2016.

The above view of this Court gets support from the decision made in the case of *Bakhrabad Gas System Limited vs Al Masud-ar-Noor and others* reported in 66 DLR (AD) 187 wherein our Apex Court held :

" ... The appointing authority has every right to amend/alter the service rules to suit the need of the time but not to the detriment or disadvantage to the rights or privileges that existed at the relevant time when an employee of such appointing authority entered into its service. To be more explicit, the appointing authority enjoys the power and the authority to frame new rules to regulate the service of its employees, but that in no way, can take away the accrued/vested rights of its employees, here the writ petitioners. We also make it very clear that an employee shall definitely be entitled to the new

service benefits if given or created by the new rules, but no rules can be framed to his disadvantage or detriment or to the denial of his accrued/vested right as in the instant case sought to be taken away. The new rules adding new terms and conditions including the one as to the promotion to the next higher posts shall be effective and applicable to the employees, who will be appointed after the coming into effect or force of the same."

Subsequently, in the case of *Bangladesh Bank and another vs Sukamal Sinha Choudhury and another* reported in 21 BLC (AD) 212 it was held:

"The authority has every right to amend/alter the service Rules to suit the need of the time and, as such, there is no illegality in preparing the circular with new terms and conditions but such new terms and conditions prepared by the authority shall not be applicable to the detriment or disadvantage to the privilege that existed at the relevant time when an employee of such appointing authority entered into its service."

It appears that subsequently, in several writ petitions following the aforesaid decisions of our Apex Court, this Division disposed of the Rules with an observation to consider the promotion of the employees of the different organizations following the service rules under which they were appointed. In writ Petition No. 5690 of 2021, this Division disposed of the Rule with an observation to consider the promotion of the employees of the Bangladesh Biman following the service rules under which they were appointed. It was held as under:

"Further, in this context, this Court has taken into account of judicial decisions of our Apex Court that rights accrued under the provisions of the previous recruitment Rules cannot be changed or altered to the disadvantage of the existing employees by subsequent amendment. Therefore, petitioners' promotion would be governed by the service rules under which they have acquired their rights or their appointment has been made. In this context the Service Rules, 2021 is disadvantageous to the petitioners and, therefore, the petitioner's case in respect of promotion should be considered according to the provision of Service Rules, 1988 as and when requires if they are not found otherwise disqualified under the law."

Similar views were taken in *Manjur Rahman and others Vs. Bangladesh* in Writ Petition No. 28 of 2022 (unreported), *Md. Rezaul Amin and others Vs. Bangladesh* in Writ Petition No. 5203 of 2021 (unreported) and *Md. Rezaul Amin and others Vs. Bangladesh* in writ petition No. 5203 of 2021 (unreported judgment dated 09.03.2023) passed by us.

On perusal of the Palli Sanchay Bank (Officer-Employee) Service Regulation 2016, it appears that Cash Assistant is the feeder post of Officer (General) & Officer (Cash) and petitioners have the right to be considered for promotion to the post of Officer (General) after satisfactory completion of 5(five) years of service in the post of Cash Assistant under Palli Sanchay Bank (Officer-Employee) Service Regulation 2016.

Admittedly, the petitioners were appointed on 04.04.2019 in the post of Cash Assistant and as such, the Palli Sanchay Bank (Officer-Employee) Service Regulation 2022 does not apply to the petitioners. They must be considered under the service regulation, 2016 under which they were appointed to the post of Cash Assistant if they are not otherwise found disqualified under law.

In view of the above, we hold the view that the promotion of petitioners would be governed by the Palli Sanchay Bank (Officer-Employee) Service Regulation 2016, under which they were appointed in the post of Cash Assistant.

In view of the above scenario and decisions, the Rule Nisi is disposed of with the above mentioned observation. However, there will be no order as to costs.

Communicate the judgment and order immediately.

Zafar Ahmed, J.

I agree.

Md. Ariful Islam Khan
Bench Officer